

Mahboob v. State of U.P. — s.135 FIR disclosing cognizable offence not quashed

High Court of Judicature at Allahabad · Division Bench · 4 August 2014 · Criminal Misc. Writ Petition No. 13083 of 2014 · **s.135 FIR not quashed; CrPC 41/41-A arrest direction; compounding under Supply Code left open**

HEADNOTE

The Allahabad High Court refused to quash an FIR under s.135 of the Electricity Act, 2003 because it disclosed a cognizable offence. Arrest not having been made, police were directed, if arrest were contemplated in an offence not entailing more than seven years' imprisonment, to comply with s.41(1)(b) read with s.41-A Cr.P.C. If the offence is compoundable, the accused may seek compounding under the Electricity Supply Code, 2005. The writ was disposed of.

FACTUAL SUMMARY

Mahboob approached the Allahabad High Court in a criminal writ petition seeking to quash an FIR dated 15 July 2014, registered as Case Crime No. 335 of 2014 under Section 135 of the Electricity Act, 2003 at Police Station Chandpur, District Bijnor. He had not been arrested. His counsel submitted that the alleged offence carried a maximum sentence not exceeding seven years, so arrest should not be mechanical, and that the offence was compoundable. The State appeared through the Government Advocate.

HOLDING-UNITS

HOLDING-UNIT · EA2003::135

s.135 FIR quash, arrest safeguards, compounding

HOLDING

An FIR under s.135 of the Electricity Act, 2003 that discloses a cognizable offence will not be quashed. Where arrest has not been effectuated and the offence will not entail a sentence of more than seven years, police must comply with s.41(1)(b) read with s.41-A Cr.P.C. If the offence is compoundable, the accused may seek compounding under the Electricity Supply Code, 2005. ¶ 1

PRINCIPLE TAGS

s135-arrest-safeguards-and-compounding-remedy

Quash of the s.135 FIR refused because it disclosed a cognizable offence; prospective arrest confined to CrPC 41(1)(b)/41-A; compounding left to the Supply Code, 2005 if available. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ALLEGED S.135 OFFENCE WAS COMPOUNDABLE ON THESE FACTS

The Court did not decide compoundability; it left the petitioner to pursue the Supply Code, 2005 if the offence is compoundable.

¶ 1